

name. Moreover mere intention suffices for the retention of possession ; so that although a man is not in actual possession either himself or through another, yet if it was not with the intention of abandoning the thing that he left it, but with that of subsequently returning to it, he is deemed not to have parted with the possession. Through what persons we can obtain possession has been explained in the second Book ; and it is agreed on all hands that for obtaining possession intention alone does not suffice. An interdict for recovering 6 possession is granted to persons who have been forcibly ejected from land or buildings ; their proper remedy being the interdict *Unde vi*, by which the ejector is compelled to restore possession, even though it had been originally obtained from him by the grantee of the interdict by force, clandestinely, or by permission. But by imperial constitutions, as we have already observed, if a man violently seizes on property to which he has a title, he forfeits his right of ownership ; if on property which belongs to some one else, he has not only to restore it, but also to pay the person whom he has violently dispossessed a sum of money equivalent to its value. In cases of violent dispossession the wrongdoer is liable under the *lex Julia* relating to private or public violence, by the former being meant unarmed force, by the latter dispossession effected with arms ; and the term 'arms' must be taken to include not only shields, swords, and helmets, but also sticks and stones. Thirdly, interdicts are divided into simple and 7 double. Simple interdicts are those wherein one party is plaintiff and the other defendant, as is always the case in orders of restitution or production ; for he who demands restitution or production is plaintiff, and he from whom it is demanded is defendant. Of interdicts which order abstention some are simple, others double. The simple are exemplified by those wherein the praetor commands the defendant to abstain from desecrating consecrated ground, or from obstructing a public river or its banks ; for he who demands such order is the plaintiff, and he who is attempting to do the act in question is defendant. Of double interdicts we have examples in *Uti possidetis* and *Utrubi* ; they are called double because the footing of both parties is equal,

neither being exclusively plaintiff or defendant, but each sustaining the double rôle.

- 8 To speak of the procedure and result of interdicts under the older law would now be a waste of words; for when the procedure is what is called 'extraordinary,' as it is nowadays in all actions, the issue of an interdict is unnecessary, the matter being decided without any such preliminary step in much the same way as if it had actually been taken, and a modified action had arisen on it.

TITLE XVI.

OF THE PENALTIES FOR RECKLESS LITIGATION.

- It should here be observed that great pains have been taken by those who in times past had charge of the law to deter men from reckless litigation, and this is a thing that we too have at heart. The best means of restraining unjustifiable litigation, whether on the part of a plaintiff or of a defendant, are money fines, the employment of the oath, and
1 the fear of infamy. Thus, under our constitution, the oath has to be taken by every defendant, who is not permitted even to state his defence until he swears that he resists the plaintiff's claim because he believes that his cause is a good one. In certain cases where the defendant denies his liability the action is for double or treble the original claim, as in proceedings on unlawful damage, and for recovery of legacies bequeathed to religious places. In various actions the damages are multiplied at the outset; in an action on theft detected in the commission they are quadrupled; for simple theft they are doubled; for in these and some other actions the damages are a multiple of the plaintiff's loss, whether the defendant denies or admits the claim. Vexatious litigation is checked on the part of the plaintiff also, who under our constitution is obliged to swear on oath that his action is commenced in good faith; and similar oaths have to be taken by the advocates of both parties, as is prescribed in other of our enactments. Owing to these substitutes the old action of dishonest litigation has become obsolete. The effect of this was to penalise the plaintiff in a tenth part of the value he

claimed by action ; but as a matter of fact we found that the penalty was never exacted, and therefore its place has been taken by the oath above mentioned, and by the rule that a plaintiff who sues without just cause must compensate his opponent for all losses incurred, and also pay the costs of the action. In some actions condemnation carries infamy with it, ² as in those on theft, robbery, outrage, fraud, guardianship, agency and deposit, if direct, not contrary ; also in the action on partnership, which is always direct, and in which infamy is incurred by any partner who suffers condemnation. In actions on theft, robbery, outrage, and fraud, it is not only infamous to be condemned, but also to compound, as indeed is only just ; for obligation based on delict differs widely from obligation based on contract.

In commencing an action, the first step depends upon that ³ part of the Edict which relates to summons ; for before anything else is done, the adversary must be summoned, that is to say, must be called before the judge who is to try the action. And herein the praetor takes into consideration the respect due to parents, patrons, and the children and parents of patrons, and refuses to allow a parent to be summoned by his child, or a patron by his freedman, unless permission so to do has been asked of and obtained from him ; and for non-observance of this rule he has fixed a penalty of fifty *solidi*.

TITLE XVII.

OF THE DUTIES OF A JUDGE.

Finally, we have to treat of the duties of a judge ; of which the first is not to judge contrary to statutes, the imperial laws, and custom. Accordingly, if he is trying a noxal action, and thinks that the master ought to be condemned, he should be careful to word his judgment thus : 'I condemn Publius Mævius to pay ten *aurei* to Lucius Titius, or to surrender to him the slave that did the wrong.' If the action is real, and he finds against the plaintiff, he ought to absolve the defendant ; if against the latter, he ought to order him to give up the property in question, along with its fruits. If the defendant pleads that he is unable to make immediate restitution and